

BEFORE THE LABOR RELATIONS BOARD
REGIONAL OFFICE

NORTHGATE PRECISION MANUFACTURING, INC. <i>and</i> ALLIED PRODUCTION WORKERS UNION, LOCAL 47 Charging Party.	))))	Cases LRB-CA-2025-0147 LRB-CB-2025-0162
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DECISION AND ORDER OF THE REGIONAL DIRECTOR

(Fictional Training Sample — For Educational Use Only)

Issued: July 28, 2025

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I. Introduction and Statement of the Case

This consolidated proceeding arises under the Labor Relations Act (“the Act”). The matter comes before the Regional Director of the Labor Relations Board on the consolidated complaint and the record developed at a hearing held over four days in June 2025 before an Administrative Law Judge, together with the parties’ post-hearing briefs.

The principal questions presented are: (1) whether the Respondent, Northgate Precision Manufacturing, Inc., violated Section 8(a)(1) of the Act by coercively interrogating employees, threatening plant closure, and soliciting employees to engage in surveillance of their coworkers’ union activities; (2) whether the Respondent violated Section 8(a)(3) and (1) by discharging chief shop steward Maria Santos because of her protected, concerted, and union activities; and (3) whether the Respondent violated Section 8(a)(5) and (1) by unilaterally changing its attendance policy and by refusing to bargain over safety protocols in Stamping Department B.

For the reasons set forth below, the Regional Director finds that the Respondent committed the violations alleged and orders the remedies described in Part IX.

II. Procedural History

1. On March 14, 2025, Allied Production Workers Union, Local 47 (“the Union”) filed the charge in Case LRB-CA-2025-0147, alleging violations of Section 8(a)(1), (3), and (5) of the Act.
2. Following an investigation, the Region issued a complaint and notice of hearing on June 2, 2025, alleging that the Respondent engaged in the unfair labor practices described above.
3. The Respondent filed a timely answer denying the commission of any unfair labor practice and asserting affirmative defenses, including that the discharge of Maria Santos was for cause and that the attendance policy was a lawful exercise of its management rights.
4. A hearing was held over four days in June 2025. All parties were afforded a full opportunity to appear, examine and cross-examine witnesses, and introduce evidence. The General Counsel and the Respondent filed post-hearing briefs, which have been carefully considered.
5. On the entire record, including observation of the demeanor of the witnesses, and after consideration of the briefs, the following findings of fact, conclusions of law, and order are entered.

III. Contentions of the Parties

A. The General Counsel

The General Counsel contends that the record establishes each alleged violation. With respect to Section 8(a)(1), the General Counsel argues that Supervisor Waverly’s questioning of employee Patel, coupled with the statement that “things are easier for guys who stay out of union business,” constitutes coercive interrogation under the totality-of-the-circumstances standard; that HR Director Chen’s plant-closure remark constitutes an unlawful threat; and that Waverly’s

request that employee Kim report on union meetings constitutes unlawful solicitation of surveillance. With respect to Section 8(a)(3), the General Counsel argues that the discharge of chief steward Santos was motivated by her protected activity and that the Respondent's attendance rationale is pretextual. With respect to Section 8(a)(5), the General Counsel argues that the January 8 attendance-policy change and the refusal to bargain over departmental safety protocols were unlawful unilateral actions affecting mandatory subjects of bargaining.

B. The Respondent

The Respondent denies each violation. It contends that Waverly's exchange with Patel was casual workplace conversation lacking any coercive character; that Chen's remarks were lawful expressions of general business concern protected by Section 8(c) of the Act; and that no employee was solicited to engage in surveillance. The Respondent further contends that Santos was discharged for legitimate, nondiscriminatory attendance violations under a facially neutral policy applied uniformly to all employees, and that it would have discharged her regardless of any protected activity. Finally, the Respondent contends that the attendance policy was a non-bargainable exercise of its reserved management rights, and that the collective-bargaining agreement's management-rights clause privileged its conduct with respect to both the policy and the departmental safety protocols.

For the reasons set forth in Part VII below, the Regional Director rejects the Respondent's contentions and sustains the General Counsel's position on each count.

IV. Jurisdiction

The Respondent, a corporation with its principal place of business within the Region, is engaged in the manufacture of precision metal stampings and assemblies for the aerospace and automotive industries. During the representative twelve-month period, the Respondent, in conducting its business operations, purchased and received at its facility goods valued in excess of \$50,000 directly from points outside the State in which it is located, and sold and shipped goods valued in excess of \$50,000 directly to points outside that State.

Accordingly, it is found that the Respondent is an employer engaged in commerce within the meaning of Section 2(2), (6), and (7) of the Act, and that the Union is a labor organization within the meaning of Section 2(5) of the Act. The Board has jurisdiction over this matter.

V. Findings of Fact

A. The Employer's Operations and the Bargaining Relationship

The Respondent operates a production facility employing approximately 340 production and maintenance employees. Since 2019, the Union has been the certified exclusive collective-bargaining representative of those employees. The parties are signatories to a collective-bargaining agreement effective January 1, 2024 through December 31, 2026, which contains a grievance-and-arbitration procedure, a just-cause provision governing discipline, and a management-rights clause.

Maria Santos was employed by the Respondent for twelve years and served as the Union's elected chief shop steward from 2022 until her discharge on March 10, 2025. The record establishes that Santos was the most active steward at the facility and that, in February 2025 alone, she filed four grievances on behalf of unit employees.

B. The Unilateral Attendance-Policy Change

Effective January 8, 2025, the Respondent implemented a revised, no-fault attendance policy that replaced its prior progressive-discipline framework. The prior policy required documented counseling before formal discipline; the revised policy assigned points for absences and tardiness and authorized discharge upon the accumulation of points, with materially reduced counseling steps. The Respondent did not notify the Union of the change before implementation and did not afford the Union an opportunity to bargain.

On January 15, 2025, the Union served a written information request concerning the policy. On January 22, 2025, the Union filed a grievance challenging the unilateral implementation. The Respondent maintained that the change was a non-bargainable management prerogative.

C. Supervisory Interrogation and Solicitation of Surveillance

The credited testimony of employee James Patel establishes that on February 3, 2025, his supervisor, Tom Waverly, asked him at his work station whether he had “[gone] to that union meeting last Tuesday,” and stated that “things are easier for guys who stay out of union business.” The credited testimony of employee Sandra Kim establishes that, in the same period, Waverly asked her to “keep him in the loop” regarding what was discussed at union meetings, and that Kim promptly reported the request to Santos on February 18, 2025.

Waverly admitted asking Patel about union-meeting attendance, although he characterized the exchange as casual. The Regional Director credits Patel and Kim over Waverly, based on the consistency and mutual corroboration of their accounts, their demeanor, the contemporaneous report by Kim, and Waverly's admission of the core fact.

D. The Threat of Plant Closure

On February 12, 2025, HR Director Patricia Chen conducted a mandatory departmental meeting at which she stated that “companies that fight with unions sometimes have to make hard choices about staying open.” The Regional Director finds that this statement, delivered during a period of active grievance filing, reasonably conveyed to employees that continued union activity could result in the plant's closure.

E. The Discharge of Maria Santos

Prior to 2025, Santos had a clean disciplinary record across her twelve-year tenure. On January 27, 2025, she arrived approximately eight minutes late following a documented automobile accident; she was not counseled at the time. On March 7, 2025, she received her first-ever written warning under the new attendance policy, and on March 10, 2025, she was discharged for “repeated attendance violations.”

The record contains a March 5, 2025 email from Plant Manager Harold Greenbaum to Chen stating, “Let’s move forward with Santos per our discussion.” The Respondent was unable to produce contemporaneous counseling documentation for the incidents underlying the discharge, and the record establishes that at least three non-steward employees with comparable or worse attendance during the same period were not disciplined.

VI. Credibility Resolutions

Credibility determinations have been made based on the witnesses’ demeanor, the weight of the respective evidence, established or admitted facts, inherent probabilities, and reasonable inferences drawn from the record as a whole.

The testimony of Patel, Kim, and Santos is credited. Each witness testified in a forthright manner; their accounts were internally consistent and mutually corroborative; and, in the case of Patel and Kim, the witnesses displayed reluctance rather than partisanship. The documentary record — including Santos’s clean personnel file, the comparator attendance records, and the March 5 Greenbaum email — strongly corroborates the General Counsel’s witnesses.

The testimony of Greenbaum and Chen is credited only where consistent with the documentary record or otherwise uncontradicted. Their inability to produce records that would necessarily exist had their accounts been accurate — contemporaneous counseling documentation and comparator discipline records, respectively — undermines their explanations. The March 5 email is materially inconsistent with the Respondent’s asserted attendance rationale and supports a finding of pretext.

VII. Analysis and Conclusions of Law

A. The Section 8(a)(1) Violations

Section 8(a)(1) prohibits employer conduct that reasonably tends to interfere with, restrain, or coerce employees in the exercise of their Section 7 rights, assessed under an objective standard without regard to the employer’s motive or to whether coercion succeeded.

Interrogation. Applying the totality-of-the-circumstances test articulated in *Rossmore House*, the Regional Director concludes that Waverly’s questioning of Patel was unlawful. The questioning was conducted by a direct supervisor at the employee’s work station, sought to ascertain the employee’s union-meeting attendance, and was paired with a statement linking job ease to abstention from “union business.” These circumstances would reasonably tend to coerce a reasonable employee.

Threat of plant closure. Under the standard established in *Gissel Packing Co.*, an employer’s prediction of adverse consequences is protected only if carefully phrased on the basis of objective fact to convey probable consequences beyond the employer’s control. Chen’s statement conveyed instead that the Respondent might choose to close in response to union activity, and is therefore an unlawful threat not shielded by Section 8(c).

Solicitation of surveillance. An employer violates Section 8(a)(1) when it solicits employees to report on their coworkers' union activities. Waverly's request that Kim "keep him in the loop" about union meetings constitutes such unlawful solicitation.

B. The Section 8(a)(3) Discharge

The discharge of Santos is analyzed under the burden-shifting framework established in *Wright Line*. The General Counsel met the initial burden of showing that protected activity was a motivating factor in the discharge: Santos's steward status and prolific grievance activity constituted protected activity; the Respondent had knowledge of that activity; and animus is shown by the suspicious timing, the disparate treatment of comparators, the departure from the Respondent's prior progressive-discipline practice, the contemporaneous 8(a)(1) violations, and the pretext-suggesting March 5 email.

The burden therefore shifted to the Respondent to prove that it would have discharged Santos even absent her protected activity. The Respondent failed to carry that burden. Its proffered attendance rationale is unsupported by contemporaneous documentation, is contradicted by the disparate treatment of similarly situated employees, and is undermined by the March 5 email. The Regional Director concludes that the discharge violated Section 8(a)(3) and (1).

C. The Section 8(a)(5) Violations

Under the Supreme Court's decision in *Katz*, an employer that unilaterally changes a mandatory subject of bargaining without first bargaining to agreement or impasse violates Section 8(a)(5). Attendance and disciplinary policies are mandatory subjects because they directly affect job security and the terms and conditions of employment. The Respondent's implementation of the revised attendance policy on January 8, 2025, without notice to or bargaining with the Union, was an unlawful unilateral change. The Union neither waived its right to bargain nor acquiesced; to the contrary, it promptly requested information and grieved the change.

Workplace safety conditions are likewise mandatory subjects of bargaining. The Respondent's refusal to bargain over safety protocols in Stamping Department B, following two injuries in that department, and its assertion that the subject was a reserved management right, violated Section 8(a)(5) and (1). The management-rights clause does not constitute a clear and unmistakable waiver of the statutory bargaining obligation.

D. Conclusions of Law

6. The Respondent is an employer engaged in commerce within the meaning of Section 2(2), (6), and (7) of the Act, and the Union is a labor organization within the meaning of Section 2(5) of the Act.
7. By coercively interrogating an employee, threatening plant closure, and soliciting an employee to engage in surveillance of protected activity, the Respondent violated Section 8(a)(1) of the Act.
8. By discharging Maria Santos because of her union and protected concerted activity, the Respondent violated Section 8(a)(3) and (1) of the Act.

9. By unilaterally changing its attendance policy and by refusing to bargain over departmental safety protocols, the Respondent violated Section 8(a)(5) and (1) of the Act.
10. The foregoing unfair labor practices affect commerce within the meaning of Section 2(6) and (7) of the Act.

VIII. Remedy

Having found that the Respondent engaged in unfair labor practices in violation of Section 8(a)(1), (3), and (5) of the Act, the Regional Director orders that the Respondent take the following affirmative action designed to effectuate the policies of the Act.

11. Within 14 days from the date of this Order, offer Maria Santos full and immediate reinstatement to her former position or, if that position no longer exists, to a substantially equivalent position, without prejudice to her seniority or any other rights or privileges previously enjoyed.
12. Make Maria Santos whole for any loss of earnings and other benefits suffered as a result of the unlawful discharge, computed on a quarterly basis with interest, and compensate her for any adverse tax consequences and for reasonable search-for-work and consequential financial harms.
13. Rescind the revised attendance policy implemented on January 8, 2025, restore the status quo ante, and make whole any employee disciplined under the unlawful policy; on request, bargain in good faith with the Union before implementing any change to the attendance policy.
14. On request, bargain collectively and in good faith with the Union concerning safety protocols in Stamping Department B and the effects thereof.
15. Remove from its files any reference to the unlawful warning and discharge of Maria Santos, and notify her in writing that this has been done and that the discipline will not be used against her in any way.
16. Cease and desist from coercively interrogating employees, threatening plant closure, soliciting surveillance of protected activity, discharging employees because of their union activity, and unilaterally changing terms and conditions of employment.
17. Post at its facility copies of the attached Notice to Employees, in both physical and electronic form, for 60 consecutive days, and hold a meeting at which the Notice is read to employees by a responsible management official or, at the Respondent's option, by a Board agent in the presence of a responsible management official.

IX. Order

On the basis of the foregoing findings of fact and conclusions of law, and on the entire record, the Regional Director, on behalf of the Labor Relations Board, ORDERS that the Respondent, Northgate Precision Manufacturing, Inc., its officers, agents, successors, and assigns, shall take the affirmative action set forth in Part VIII above.

IT IS FURTHER ORDERED that the consolidated complaint is sustained in its entirety, and that the Respondent comply with the terms of this Order within the time periods specified herein.

Notice of Right to Appeal. Pursuant to the Board's Rules and Regulations, any party may obtain review of this Decision and Order by filing exceptions within the time and in the manner prescribed by those Rules. In the absence of timely exceptions, this Decision and Order shall become final.

SO ORDERED.

Regional Director, Labor Relations Board

Dated: July 28, 2025

APPENDIX

NOTICE TO EMPLOYEES

*Posted by Order of the Labor Relations Board
Fictional Training Sample — For Educational Use Only*

The Labor Relations Board has found that we violated labor law and has ordered us to post and obey this Notice.

THE LAW GIVES YOU THE RIGHT TO:

- Form, join, or assist a union;
- Choose representatives to bargain with us on your behalf;
- Act together with other employees for your benefit and protection; and
- Choose not to engage in any of these protected activities.

WE WILL NOT do anything to interfere with these rights. More specifically:

- WE WILL NOT coercively question you about your union support or activities, including whether you attended union meetings.
- WE WILL NOT threaten you with plant closure or other reprisals because you support Allied Production Workers Union, Local 47 or engage in protected activity.
- WE WILL NOT ask you to watch, monitor, or report on the union activities of your coworkers.
- WE WILL NOT discharge, discipline, or otherwise retaliate against you because you engage in union or protected concerted activity.
- WE WILL NOT change your attendance policy, disciplinary rules, or other terms and conditions of employment without first notifying and bargaining with your Union.
- WE WILL NOT refuse to bargain in good faith with the Union over safety conditions in our departments.

WE WILL take the following affirmative action:

- WE WILL, within 14 days, offer Maria Santos full reinstatement to her former job, and WE WILL make her whole, with interest, for any loss of earnings and benefits resulting from her unlawful discharge.
- WE WILL remove from our files all references to the unlawful warning and discharge of Maria Santos and notify her in writing that this has been done.
- WE WILL rescind the attendance policy unlawfully implemented on January 8, 2025, and make whole any employee disciplined under it.
- WE WILL, on request, bargain in good faith with the Union before changing the attendance policy and concerning safety protocols in Stamping Department B.

NORTHGATE PRECISION MANUFACTURING, INC.

(Employer) Dated: _____ By: _____

This is an official Notice and must not be defaced by anyone. This Notice must remain posted for 60 consecutive days and must not be altered, defaced, or covered by any other material.